SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 8923 of 2019 (YEAR: 2021)

CORAM: N.V. RAMANA, S. ABDUL NAZEER, SURYA KANT

Kirti
... Appellant(s) / Petitioner(s)
Versus
Oriental Insurance Company Ltd.
... Respondent(s)

Acts Referred:	Motor Vehicles Act, 1988
Sections:	Section 166 Motor Vehicles Act

JUDICIAL HEADNOTE & SUMMARY

Recognized economic and emotional contribution of homemakers in accident claims, holding that calculation of notional income must account for their uncompensated domestic labor.

RATIO DECIDENDI

The Court held that: Recognized economic and emotional contribution of homemakers in accident claims, holding that calculation of notional income must account for their uncompensated domestic labor. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Kirti v. Oriental Insurance Company Ltd. (Civil Appeal No. 8923 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Motor Vehicles Act, 1988, particularly Section 166 Motor Vehicles Act. Recognized economic and emotional contribution of homemakers in accident claims, holding that calculation of notional income must account for their uncompensated domestic labor.

OPERATIVE ORDER

ORDER: Decided